

2221-2223 Main Street

BY-LAW NO. 14678

**A By-law to authorize the amendment of a
Housing Agreement Authorized by By-law No. 12181**

PREAMBLE

WHEREAS

Council has authority under the *Vancouver Charter* to amend an existing Housing Agreement with the consent of the owner of property;

AND WHEREAS

Pursuant to By-law No. 12181 enacted July 24, 2018 the City has entered into a Housing Agreement with the owner of certain properties bearing the civic address 2221-2223 Main Street (the "**Housing Agreement**") and thereafter the Housing Agreement was registered at the Land Title Office under registration number CA7111819; and

AND WHEREAS

The City and the owner now wishes to amend the Housing Agreement and all proposed amendments are acceptable to the City and the owner.

NOW THEREFORE THE COUNCIL OF THE CITY OF VANCOUVER, in public meeting, enacts as follows:

1. Council authorizes amendment of the Housing Agreement in substantially the form and substance of the modification agreement attached to this By-law as Schedule A and authorizes the Director of Legal Services to execute the modification agreement on behalf of the City and to deliver it to the owner on such terms and conditions as the Director of Legal Services deems fit.
2. A decision by a court that any part of this By-law is illegal, void, or unenforceable severs that part from this By-law, and is not to affect the balance of this By-law.
3. This By-law is to come into force and take effect on the date of its enactment.

ENACTED by Council this 5th day of May, 2026

Signed _____ "Ken Sim"
Mayor

Signed _____ "Katrina Leckovic"
City Clerk



Land Title Act

Charge

General Instrument – Part 1

1. Application

Pearl Ng
City of Vancouver
453 West 12th Avenue
Vancouver BC V5Y 1V4
604-873-7183

LS-17-03824
2221 Main Street

2. Description of Land

PID/Plan Number Legal Description

030-594-456 LOT 1 BLOCK 37 DISTRICT LOT 200A GROUP 1 NEW WESTMINSTER DISTRICT PLAN EPP82953

3. Nature of Interest

Type	Number	Additional Information
MODIFICATION	CA7111819	

4. Terms

Part 2 of this instrument consists of:

(b) Express Charge Terms Annexed as Part 2

5. Transferor(s)

CITY OF VANCOUVER

6. Transferee(s)

CITY OF VANCOUVER
453 WEST 12TH AVENUE
VANCOUVER BC V5Y 1V4

7. Additional or Modified Terms



8. Execution(s)

This instrument creates, assigns, modifies, enlarges or governs the priority of the interest(s) described in Item 3 and the Transferor(s) and every other signatory agree to be bound by this instrument, and acknowledge(s) receipt of a true copy of the filed standard charge terms, if any.

Witnessing Officer Signature

Execution Date

Transferor / Transferee / Party Signature(s)


WESLEY Y. L. CHAN
453 WEST 12TH AVENUE
VANCOUVER, B.C. V5Y 1V4
BARRISTER & SOLICITOR

YYYY-MM-DD
2026-04-15

CITY OF VANCOUVER
By their Authorized Signatory


Print Name:
GRANT MURRAY

Officer Certification

Your signature constitutes a representation that you are a solicitor, notary public or other person authorized by the *Evidence Act*, R.S.B.C. 1996, c.124, to take affidavits for use in British Columbia and certifies the matters set out in Part 5 of the *Land Title Act* as they pertain to the execution of this instrument.

Witnessing Officer Signature

Execution Date

Transferor / Transferee / Party Signature(s)

YYYY-MM-DD

CITY OF VANCOUVER
By their Authorized Signatory

Print Name:

Officer Certification

Your signature constitutes a representation that you are a solicitor, notary public or other person authorized by the *Evidence Act*, R.S.B.C. 1996, c.124, to take affidavits for use in British Columbia and certifies the matters set out in Part 5 of the *Land Title Act* as they pertain to the execution of this instrument.



Land Title Act

Charge

General Instrument - Part 1

Witnessing Officer Signature

Benjamin Allan McLennan
A Commissioner for taking Affidavits for the
Province of British Columbia
My Commission Expires on May 31, 2028

Execution Date

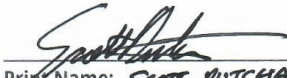
YYYY-MM-DD

2026-01-21

Transferor / Transferee / Party Signature(s)

CATALYST COMMUNITY
DEVELOPMENTS SOCIETY

By their Authorized Signatory


Print Name: SCOTT DUTCHAK

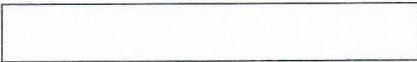
Print Name: _____

Officer Certification

Your signature constitutes a representation that you are a solicitor, notary public or other person authorized by the *Evidence Act*, R.S.B.C. 1996, c.124, to take affidavits for use in British Columbia and certifies the matters set out in Part 5 of the *Land Title Act* as they pertain to the execution of this instrument.

Electronic Signature

Your electronic signature is a representation that you are a designate authorized to certify this document under section 168.4 of the *Land Title Act*, RSBC 1996, c 250, that you certify this document under section 168.41 (4) of the Act, and that an execution copy, or a true copy of that execution copy, is in your possession.



TERMS OF INSTRUMENT - PART 2
MODIFICATION OF HOUSING AGREEMENT AND BUILDING USE COVENANT
SOCIAL HOUSING
(the "Modification")

2221 - 2223 MAIN STREET

Introduction

- A. The Transferor, CITY OF VANCOUVER, is called the "Owner";
- B. The Transferee, City of Vancouver, is called the "City" when referring to corporate entity and "City of Vancouver" when referring to geographic location;
- C. The Owner is the registered and beneficial owner of the Lands;
- D. The Owner made an application in respect of the Lands to rezone the Lands from IC-2 (Industrial) District to CD-1 (Comprehensive Development) District (the "**Rezoning Application**") and to satisfy the conditions of such Rezoning Application, among other things, the Owner entered into a Housing Agreement and Building Use Covenant with the City which was registered at the Land Title Office on October 5, 2018 under registration number CA7111819 (the "**Housing Agreement**"), as authorized by City Council under By-law No. 12181;
- E. The Owner leased the Lands to Catalyst Community Development Society ("Catalyst") by way of a lease (the "**Lease**") registered at the Land Title Office under registration No. CA7616042; and
- F. The City and the Owner have agreed to enter into this modification agreement (the "**Modification**") to make amendments to the Housing Agreement.

Consideration

NOW THEREFORE THIS MODIFICATION WITNESSES that, in consideration of each party agreeing to modify the Housing Agreement as set out hereinafter and for good and valuable consideration (the receipt and sufficiency of which the parties hereto acknowledge and agree to), pursuant to Section 565.2 of the *Vancouver Charter* and Section 219 of the *Land Title Act*, the Owner and the City hereby covenant and agree as follows:

1. Definitions

All capitalized terms used in this Modification which are defined in the Housing Agreement will have the meaning ascribed to such terms in the Housing Agreement unless defined in this Modification or the context otherwise requires.

2. Modification of the Housing Agreement

The Owner and the City agree that the Housing Agreement shall be amended by:

- (a) inserting the following immediately after Section 1.1(l) as Section 1.1(l.1):

“(l.1) **“HILs Replacement Reserve”** means a reserve kept and maintained by the Owner or its lessee for the purpose of subsidizing the rent of the tenants of the Social Housing Units referred to in Section 2.1(d) whose income decreases below the level of income such tenants had at the commencement of the tenancy agreement for his or her tenancy of the Social Housing Unit, in such an amount that is reasonable, as determined at the sole discretion of the Owner, given the purpose of such reserve and the expected frequency and duration of use of the reserve during the Term, such that the balance of the reserve is not to exceed 10% of the total of the maximum annual rents charged to all of the Social Housing Units referred to in Section 2.1(d). The Owner may, in their sole discretion, acting reasonably, determine which tenants of Social Housing Units receive funds from the reserve, along with the amount, duration and frequency for which such subsidy is provided to an applicable tenant. The Owner will take into consideration the reason for such decrease in income and the duration considered reasonable for such subsidy to be provided.”;

(b) deleting Section 2.1(d) in its entirety and replacing it with the following:

“(d) not less than 30% of the Social Housing Units (the **“HILs Units”**) will be:

(i) throughout the Term, occupied by households with incomes below the then current applicable HIL; and

(ii) rented at rates that are subject to the following:

(A) for the first fifty (50) years of the Term:

I the annual rental rates for each such HILs Unit will not exceed 30% of the then current HIL applicable to such units; and

II for so long as there are funds available in the HILs Replacement Reserve, every three (3) years following the first (1st) year of the Term (for which the commencement date was October 25, 2021):

(1) the aggregate annual rental rates for the HILs Units divided by the aggregate annual household incomes for the occupants of the HILs Units must be approximately thirty percent (30%), unless such requirement cannot be fulfilled due to the changes in personal circumstances of one or more of the occupants of a HILs Units and whereby the Owner has made reasonable efforts to fill any vacancies; and

(2) if the aggregate annual rental rates for the

HILs Units divided by the aggregate annual household incomes for the HILs Units exceeds 30%, the Owner will use the funds available in the HILs Replacement Reserve to subsidize the rent for one or more tenants of the HILs Units that are paying rents that exceed the amount that is 30% of such tenant(s)' income, in order to remain in compliance with Section 2.1(d)(ii)(A)II(1), provided the Owner will only be required to subsidize rents, as aforesaid, up to the funds available in the HILs Replacement Reserve;

- (B) for the balance of the Term, each of the HILs Units will be rented at a rate no higher than 30% of the aggregate income of the members of the household occupying such HILs Unit; and"; and

- (c) inserting the following immediately following Section 2.1(d), as Section 2.1(d.1):

"(d.1) average rents across each unit type of the Social Housing Units (or Replacement Social Housing Units, as applicable) will not exceed 80% of the maximum rents for the respective unit type determined in accordance with Section 3.1A(e) of the DCL By-law, as may be amended from time to time;"

3. **Acknowledgement**

Catalyst acknowledges and agrees with the Owner and the City that it will comply with the terms of both the Housing Agreement, as modified herein, and the Lease.

4. **Housing Agreement Ratified and Confirmed**

Except as hereby expressly modified, the Housing Agreement is hereby ratified and confirmed by the City and the Owner to the effect and with the intent that the Housing Agreement and this Modification will be read and construed as one document.

5. **Amendment**

No alteration or amendment of the Housing Agreement or this Modification will have effect unless the same is in writing and duly executed by the parties to be charged.

6. **Binding Effect**

This Modification will enure to the benefit of and be binding upon the parties and their respective successors and permitted assigns.

7. **Time**

Time shall be of the essence of this Modification.

8. **Conflict**

In the event of any conflict between the terms and conditions of the Housing Agreement and the terms and conditions of this Modification, the terms and conditions of this Modification will prevail.

IN WITNESS WHEREOF the parties hereto have executed this Modification on the General Instrument - Part 1 which is attached hereto and forms part hereof.

END OF DOCUMENT